

Forming Trail Chapters and Developing Municipal Partners

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- I. Regional Trail Corporation Bylaws – The Formation of the RTC
 - A. To acquire, construct and manage the Yough River Trail, McKeesport to Connellsville
 - B. Three counties: Allegheny, Westmoreland, Fayette
 - C. RTC Board of Directors
 - D. Each County appoints 3 to make nine
 - E. Nine more elected at large from Chapter volunteers
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 - G. RTC Umbrella
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VIII. Volunteers

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IX. Municipalities

- A. Municipal Borders
- B. Breaking down the barriers
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- D. Extend thanks - let them know their efforts are appreciated!
 - Trail Photos – municipal crews in action
 - T-shirts and hats
 - Buy them lunch

BY-LAWS OF
REGIONAL TRAIL CORPORATION
(a Pennsylvania Nonprofit Corporation)

ARTICLE I – NAME

The name of this Pennsylvania nonprofit corporation shall be the Regional Trail Corporation.

ARTICLE II – PURPOSE

Regional Trail Corporation is formed to promote the conversion of the following abandoned railroad rights-of-way into recreational trails:

- A. Rights-of-way in Allegheny, Westmoreland, Fayette and such other counties as the Board of Directors shall determine.
- B. This Corporation shall also promote the preservation and protection of the natural resources found along these rights-of-way and the preservation of the history of these rights-of-way. The Corporation's secondary objective is the acquisition of adjacent properties for the purpose of conservation and preservation of open space, park lands or natural areas for the public benefit. *
- C. The term of existence of the corporation shall be perpetual. However, should the corporation dissolve, either voluntarily or involuntarily, any assets remaining in the corporation shall be distributed only to the counties of Allegheny, Westmoreland, and Fayette, and any other county or counties which may hereafter be represented on the Board of Directors at the time of dissolution. This article shall not be subject to amendment.

ARTICLE III - OFFICES

Section 1. Registered Office. The initial registered office of this Corporation shall be located at 2310 Grant Building, Pittsburgh, PA 15219.

Section 2. Offices. This Corporation may also have offices at such other places as the Board of Directors may from time to time determine.

ARTICLE IV – MEMBERSHIP

Section 1. Qualifications. Any individual or organization which supports the purpose of this Corporation and pledges to uphold its By-Laws shall become a Member upon payment of the required dues.

Section 2. Rights. Governmental, Association-Corporation and Individual members shall have the right to vote, to constitute a quorum, to be eligible for election or appointment to the Board of Directors, to initiate petitions to the Board of Directors, and to otherwise participate fully in the activities of the Corporation. Governmental, Association/Corporate, and Individual members shall be entitled to one vote at the membership meeting to elect or remove at large directors.

*amended on 4/19/00, 11/14/07

Section 3. Types. The categories of membership and dues will be as follows:

Individual	\$ 25.00
Associate/Corporate	\$ 250.00
Governmental	\$1,000.00

Section 4. Denial or Revocation of Membership. An application for membership may be denied or membership revoked, for cause, by a majority vote of the Board of Directors upon notice by the Membership Chairperson.

Section 5. Membership Year. The membership year shall begin January 1 and end December 31.

ARTICLE V – BOARD OF DIRECTORS

Section 1. Responsibilities. All ordinary business of the Corporation shall be under the sole care and management of a Board of Directors. The Board shall plan and implement the programs and activities of the Corporation. The Board shall annually present to the Members a report on the state of the Corporation.

Section 2. Powers. The Board of Directors may exercise all the powers of the Corporation, including the authority to conduct its business and to contract for services on behalf of the Corporation and its members. The Board's power shall rest in the group meeting in regular session; as individuals, Board members shall hold no special authority.

Section 3. Size. The Board of Directors shall consist of eighteen (18) members* comprised of three (3) representatives each to be appointed by the Board of County Commissioners from Allegheny, Westmoreland, and Fayette Counties; and nine persons* to be elected at large by the membership. Such members to be elected or appointed two (2) months prior to taking office.

Section 4. Terms of Office. The Directors shall be elected by and from the eligible membership by the procedure outlined in Article XI. The Board of Directors shall have six (6) Directors that will serve for a one (1) year term, six (6) Directors that will serve for a two (2) year term and six (6) Directors that will serve for a three (3) year term. Allegheny, Westmoreland, and Fayette Counties will each appoint one Director to serve a one (1) year term, one Director to serve a two (2) year term and one Director to serve a three (3) year term. Thereafter, the Directors shall serve terms of three (3) years for a maximum of two consecutive terms. Their terms shall be arranged so that one-third of the actual number of Directors' terms expire each year. The Directors shall serve without compensation.

Section 5. Vacancies and Removals—County Directors. The County appointing a Director shall have the power to fill a vacancy on the Board created by the resignation of its appointee, and the person so appointed shall serve until the expiration date of the unexpired term. Any appointee may be removed from the Board of Directors by the County appointing that Director. If at any time, the Board has fewer than the maximum number of eighteen (18) Directors*, the Board may, at its option, appoint members to increase its size within that limit. An appointment to fill a vacancy created by a Director not appointed by the County shall be made by the Board at the next Board of Directors meeting occurring after such a vacancy occurs.

Section 6. Removal—At Large Directors. Any at large member of the Board of Directors, including the Officers, may be removed from office, for cause, by two-thirds

vote of the membership at a special Meeting convened in the manner specified in Article IX, Section 2. If a member of the Board of Directors shall absent himself from three (3) consecutive Board meetings, unless detained by sickness or absent due to reasonable cause communicated to the Board, he shall automatically forfeit Board membership.

ARTICLE VI – OFFICERS

Section 1. Officers. The Officers of the Corporation shall include a President, three Vice Presidents (one from Allegheny County, one from Westmoreland County, and one from Fayette County), a Secretary, and a Treasurer. The officers shall be elected annually as specified in Section 6. They shall serve without compensation; however, the Board of Directors may reimburse the Officers for reasonable, necessary, and documented expenses incurred on behalf of the Corporation.

Section 2. President. The President shall be the spokesperson of the Corporation and shall preside at all meetings of the Corporation and of its Board of Directors and its Executive Committee except as provided in Article IX, Section 4. The President shall exercise all of the powers and perform all of the duties normally pertaining to the office of President of a corporation; shall recommend to the Board of Directors such policies and actions as are deemed likely to be useful in carrying out the program and purposes of the Corporation; shall, with Board concurrence, appoint Chairpersons of Committees; and shall be a ex-officio member of all committees except the Nominating Committee.

Section 3. Vice Presidents. The Vice Presidents shall act in the absence or disability of the President and when so acting shall have the powers of the President. The Vice Presidents shall also perform such other duties as may be assigned by the President with the concurrence of the Board.

Section 4. Secretary. The secretary shall act as secretary at all meetings of the Corporation and of the Board of Directors and of the Executive Committee; shall perform all of the duties normally pertaining to the secretary of a corporation; and shall be custodian of the Corporation records and correspondence. The Secretary shall see that all notices are duly given in accordance with the provision of these By-Laws.

Section 5. Treasurer. The Treasurer shall be responsible for the receipt and disbursement of the funds of the Corporation; shall have custody of all funds and securities of the Corporation; shall be responsible for collecting dues and other receipts; shall maintain records of the Corporation's fiscal affairs for the current year; and shall make reports to the Board of Directors at each Board meeting and to the Members annually. The Treasurer shall also ensure filing of such financial reports as tax returns and other statements that the Corporation may be required by law to file.

Section 6. Elections. The Officers of the Corporation shall be elected annually from among the members of the Board of Directors by majority vote of the new Board of Directors at the first Board meeting following the election of Directors, which shall be held one (1) month before the officers take office.

Section 7. Terms of Office. The term of the first officers of the corporation shall commence upon election and continue until December 31 of the following year. Thereafter, the Officers shall serve for terms of one year beginning on January 1 of each year, or until replacement or resignation. Their terms shall begin immediately upon

election. A maximum of three consecutive terms may be held by an individual in any office.

Section 8. Vacancies. An appointment to fill a vacancy in any office shall be made by the Board at the next Board of Directors meeting occurring after such a vacancy occurs.

Section 9. Removal. Any Officer may be removed from office for due cause by two-thirds vote of the Board of Directors. The resulting vacancy shall be filled as specified in Section 8.

ARTICLE VII – EXECUTIVE COMMITTEE

Section 1. Responsibility. The Executive Committee shall manage the day to day business of the Corporation between meetings of the Board and recommend policy matters for the Board of Directors to consider. It may execute all powers of the Board of Directors of a routine, usual, or emergency nature except for the appropriation of funds. The Executive Committee shall be convened by the President upon his direction or upon request of any three (3) of its members. Three of the Executive Committee members shall constitute a quorum.

Section 2. Composition. The Officers of the Corporation and the immediate past-president shall constitute the Executive Committee.

ARTICLE VIII – STANDING AND SPECIAL COMMITTEES

Section 1. Standing Committees. All continuing functions of the Corporation, with the exception of those of the Officers and Directors, shall be administered by Standing Committees. The President shall, subject to Board of Directors approval, appoint Chairs of Standing Committees that may be necessary to carry out the program of the Corporation. Each Standing Committee Chair shall select such Members as are qualified and willing to serve on the Committee.

Section 2. Special Committees. The Board of Directors may establish Special Committees to conduct special activities or functions of the Corporation. The President shall, subject to Board of Directors approval, appoint Chairs of Special Committees. The Chair shall serve for the term of existence of the Special Committee or until removal or resignation.

Section 3. Authority. It shall be the function of Committees to investigate and make recommendation. They shall report in writing to the Board of Directors. No Special or Standing Committee shall represent the Corporation in advocacy of or opposition to any project without the specific confirmation of the Board of Directors.

Section 4. Formation of Chapters. The Board of Directors may form chapters in other cities, towns, and boroughs in Pennsylvania, as the Board deems necessary.

ARTICLE IX – MEMBERSHIP MEETINGS

Section 1. Annual Meetings. The first annual membership meeting of the corporation shall be held in November of the year following incorporation. Thereafter, the annual membership meeting of the Corporation shall be held in November of each

year at a date, time, and place designated by the Board of Directors. The Secretary shall ensure that written notice is sent to each Member at least fifteen (15) days in advance of each Annual Meeting.

Section 2. Special Meetings. Special meetings of the membership may be called by the Board of Directors or the President. A Special Meeting must also be called by the Board of Directors upon receipt of a petition signed by ten (10%) percent or more of the Members to consider those questions stated on the petition. The Secretary shall ensure that written notice of such meeting is sent to each Member at least eight (8) days in advance. The business transacted at said meeting shall be confined to the purpose stated in the notice.

Section 3. Quorum. Twenty (20%) percent of the Members or fifteen (15) Members, whichever is less, shall constitute a quorum for the transaction of business at any annual or special meeting of the Corporation. Except as prescribed in Article XII, a motion shall require for adoption a simple majority of the Members present at such meeting.

Section 4. Chair Pro-tem. The President or the Board of Directors may designate any Member to preside as Chair Pro-Tem for any part or all of such meeting.

Section 5. Voting. A Member may vote either in person or by proxy, executed in writing by the Member.

ARTICLE X – MEETINGS OF THE BOARD OF DIRECTORS

Section 1. Regular Meetings of Directors. The Board of Directors shall hold regular monthly meetings; the date, time, and place of which shall be fixed from time to time by the Board. The President may, for cause, cancel, or postpone a Board meeting.

Section 2. Special Meetings of Directors. Special meetings of the Board of Directors may be called by either the President or a majority of the Board of Directors.

Section 3. Open/Executive. Session. All meetings of the Board of Directors shall be open to Members except when the Board, in its sole discretion, votes to meet in executive session, which may be required to deal with confidential matters.

Section 4. Notice. At least seven (7) days prior to each Board meeting, the Secretary shall convey notice, either personally or by mail to each Director of the date, time, and place of the meeting.

Section 5. Quorum. A majority of the total number of Directors, present in person or represented by proxy, shall constitute a quorum at all meetings of the Board of Directors. The vote of a majority of the Directors present at a meeting at which a quorum is present will be the act of the Board of Directors unless a greater number is required under the provisions of the Nonprofit Corporation Law of 1988, the Articles of Incorporation of this Corporation, or any provision of these By-Laws.

ARTICLE XI – ELECTION OF AT LARGE BOARD MEMBERS

Section 1. Nominating Committee. At the regular Board of Directors meeting two (2) months before the Annual Meeting of each year, the President shall appoint a Nominating Committee, subject to Board approval, consisting of not less than three (3) consenting persons. The members of this Committee shall be selected from the

Corporation membership at large, except that this Committee shall be chaired by a Member who is serving currently or has served previously on the Board.

Section 2. Procedure for Selecting Candidates. The Nominating Committee shall prepare a list of names of at least one (1) consenting candidate for each at large vacancy to be filled on the Board of Directors in the ensuing election. Candidates shall be selected from the current membership at large but shall be at least twenty-one (21) years of age. Membership on the Nominating Committee will not disqualify a person for any nomination. The Secretary shall ensure that all Members are notified at least fifteen (15) days prior to the Annual Meeting of the full list of candidates submitted by the Nominating Committee.

Section 3. Election Procedure. Prior to the Annual meeting, the Secretary shall prepare printed ballots bearing the names of the candidates selected. The new Directors shall be elected by a vote conducted at the Annual Meeting by secret ballot. Nominations shall also be accepted from the floor at the time of the election, but no Member shall be nominated without his consent. Each Member present shall cast as many votes as there are Director positions to be filled. Those nominees receiving the highest number of votes shall be declared elected. A tie vote shall be resolved by another ballot confined to the resolution of the tie.

Section 4. County Directors. The names of all County appointees will be made available by the County Board of Commissioners at the annual meeting.

ARTICLE XII – AMENDMENT OF BY-LAWS

Section 1. Proposals. Proposed amendments to the By-laws of this Corporation may be initiated by the Board of Directors or by a petition signed by twenty-five (25%) percent of the Members and submitted in writing to the Board of Directors for approval.

Section 2. Amendment. These by-laws may be altered, amended, repealed or added to by an affirmative vote of two-thirds (2/3) of all the Board of Directors, provided written notice of the amendment is given two (2) weeks in advance of the meeting.

ARTICLE XIII – SALARIES

The Board of Directors shall hire and fix the compensation of any and all employees which they in their discretion may determine to be necessary in the conduct of the business of the organization.

ARTICLE XIV – INDEMNIFICATION OF DIRECTORS AND OFFICERS

Section 1. Indemnification of Authorized Representative. The Corporation shall indemnify, to the fullest extent now or hereafter permitted by law (including but not limited to the indemnification provided by 42 Pa. Cons. Stat. §8365 of the Directors' Liability Act contained in the Act of November 28, 1986 P.L. 1458, No. 145, as amended 1988, Dec. 21, P.L. 1444, No. 177, §203, effective Oct. 1, 1989), each person who was or is made a party to or a witness in or is threatened to be made a party to or a witness in any threatened, pending or completed action, suit or proceeding, whether civil, criminal,

administrative or investigative, by reason of the fact that such person is or was an authorized representative of the Corporation, against all expenses (including attorneys' fees and disbursements), judgments, fines (including excise taxes and penalties), and amounts paid in settlement actually and reasonably incurred by such person in connection with such action, suit or proceeding.

Section 2. Expenses. The Corporation shall pay expenses (including attorneys' fees and disbursements) incurred by a person referred to in Section 1 hereof in defending or appearing as a witness in any civil or criminal action, suit or proceeding described in Section 1 hereof in advance of the final disposition of such action, suit or proceeding. The expenses incurred by such person shall be paid by the Corporation in advance of the final disposition of such action, suit or proceeding only upon receipt of an undertaking by or on behalf of such person to repay all amounts advanced if it shall ultimately be determined that such person is not entitled to be indemnified by the Corporation for the reason set forth in Section 4 hereof.

Section 3. Indemnification of Unauthorized Representative. The Corporation may, as determined by the Board of Directors from time to time, indemnify to the fullest extent now or hereafter permitted by law, any person who is not an authorized representative of the Corporation if such person was or is a party to or a witness in or is threatened to be made a party to or a witness in any threatened, pending or completed action, suit or proceeding, whether civil, criminal, administrative or investigative, by reason of such person's activities in connection with the Corporation against all expenses (including attorney's fees and disbursements), judgments, fines (including excise taxes and penalties), and amounts paid in settlement actually and reasonably incurred by such person in connection with such action, suit or proceeding. The Corporation may, as determined by the Board of Directors from time to time, pay expenses incurred by any such person by reason of his participation in an action, suit of preceding referred to in this Section 3 in advance of the final disposition of such action, suit or preceding upon receipt of an undertaking by or on behalf of such person to repay such amount if it shall ultimately be determined that such person is not entitled to be indemnified by the Corporation for the reason set forth in Section 4 hereof.

Section 4. Prohibition. Indemnification under this Article shall not be made by the Corporation in any case where a court determines that the alleged act or failure to act giving rise to the claim for indemnification is expressly prohibited by the Director's Liability Act, 42 Pa. Con. Stat. SS8361 et seq. contained in the Act of November 28, 1986 P.L. 1458, No. 145, as amended 1988, Dec. 21, P.L. 1444, No. 177, S203, effective Oct. 1, 1989, or any successor statute as in effect at the time of such alleged action or failure to take action.

Section 5. Powers. The Board of Directors shall have the power to borrow money on behalf of the Corporation, including the power to pledge the assets of the Corporation, from time to time, to discharge the Corporation's obligations with respect to indemnification, the advancement and reimbursement of expenses, and the purchase and maintenance of insurance. The Corporation may, in lieu of or in addition to the purchase and maintenance of insurance referred to in Section 6 hereof, establish and maintain a fund of any nature or otherwise secure or insure in any manner its indemnification obligations, whether arising under or pursuant to this Article or otherwise.

Section 6. Insurance. The Corporation shall purchase and maintain insurance on behalf of each Director and officer against any liability asserted against or incurred by such Director or officer in any capacity, or arising out of such Director's or officer's status as such, whether or not the Corporation would have the power to indemnify such Director or officer against such liability under the provisions of this Article. The Corporation shall not be required to maintain such insurance if it is not available on terms satisfactory to the Board of Directors, because either (i) the premium cost of such insurance is substantially disproportionate to the amount of coverage, or (ii) the coverage provided by such insurance is so limited by exclusion that there is insufficient benefit from such insurance. The Corporation may purchase and maintain insurance on behalf of any other person referred to in Sections 1 and 3 hereof against any liability asserted against or incurred by such person in any capacity, whether or not the Corporation would have the power to indemnify such person against liability under the provisions of this Article.

Section 7. Reliance. Each authorized representative of the Corporation shall be deemed to act in such capacity in reliance upon such rights of indemnification and advancement of expenses as are provided in this Article. The rights of indemnification and advancement of expenses provided by this Article shall not be deemed exclusive of any other rights to which any person seeking indemnification or advancement of expenses may be entitled under any agreement, vote of disinterested Directors, statute or otherwise, both as to action in such person's official capacity and as to action in another capacity while acting as an authorized representative of the Corporation, and shall continue as a person who has ceased to be an authorized representative of the Corporation and shall inure to the benefit of the heirs, executors, and administrators of such person. Indemnification and advancements of expenses under this Article shall be provided whether or not the indemnified liability arises or arose from any threatened, pending or completed action by or in the right of the Corporation. Any repeal or modification of this Article by the Board of Directors of the Corporation shall not adversely affect any right or protection existing at the time of such repeal or modification to which any person may be entitled under this Article.

Section 8. Authorized Representative Defined. For the purposes of this Article, the term "authorized representative" shall mean a Director, officer, employee, or agent of the Corporation, or a director, custodian, administrator, committeeman or fiduciary of any employee benefit plan established and maintained by the Corporation, or a person serving another corporation, partnership, joint venture, trust or other enterprise in any of the foregoing capacities at the request of the Corporation.

ARTICLE XV – ELIMINATION OF DIRECTORS' LIABILITY

Section 1. Director Liability. A Director of the Corporation shall not be personally liable for monetary damages for any action taken or any failure to take any action, provided, however, that this provision shall not eliminate or limit the liability of a Director to the extent that such elimination or limitation of liability is expressly prohibited by the Director's Liability Act, 42 Pa. Con. Stat. SS8361 et. seq. contained in the Act of November 28, 1986, P.L. 1458, No. 145, as amended 1988, Dec. 21, P.L.

1444, No. 177 S203, effective Oct. 1, 1989, as in effect at the time of the alleged action or failure to take action by such Director.

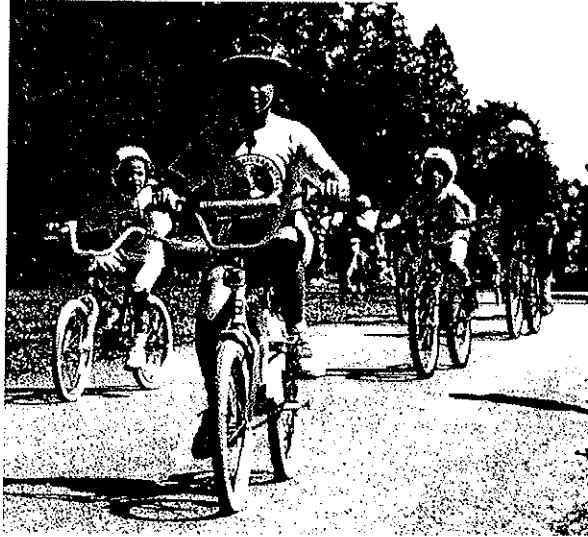
Section 2. Modification. Any repeal or modification of this Article by the Members or the Directors of the Corporation shall not adversely affect any right or protection existing at the time of such repeal or modification to which any Director or former Director may be entitled under this Article. The rights conferred by this Article shall continue as to any person who has ceased to be a Director of the Corporation and shall inure to the benefit of the heirs, executors and administrators of such person.

ARTICLE XVI – MISCELLANEOUS

Section 1. Saving Provision. In the event that any portion of these By-laws is held to be invalid by a Court of the Commonwealth of Pennsylvania, the remainder of these By-Laws shall not be affected

Section 2. Order of Precedence. Proceedings of this Corporation shall be governed first by these By-Laws as most recently amended; thereafter by Robert's Rules of Order, latest edition; and, finally, by the Pennsylvania Nonprofit Corporation Law as most recently amended.

* amended from the original by-laws by a majority vote of the Board of Directors

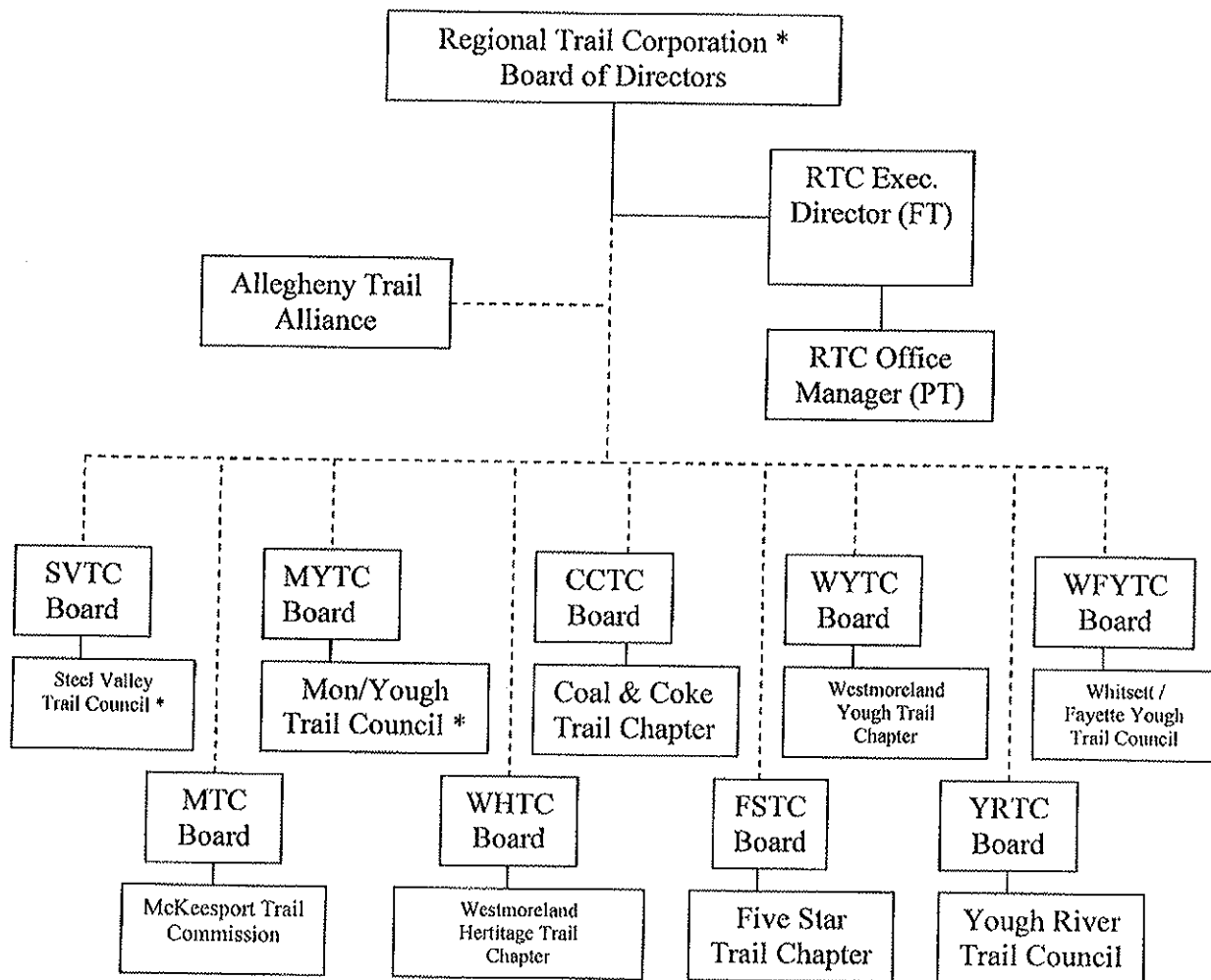
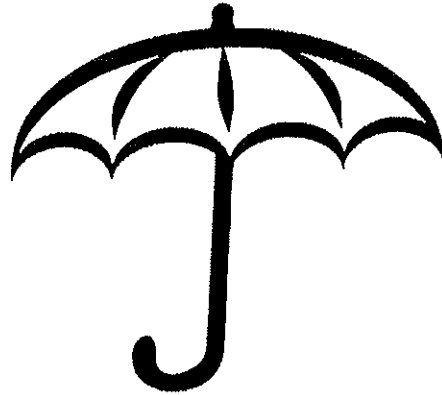


Enriching Lives

OUR MISSION

The Regional Trail Corporation is a non-profit partnership whose mission is to acquire, develop and manage appropriate trail corridors in Southwestern Pennsylvania and to create and promote opportunities for recreation, tourism, economic development, and historic and environmental conservation.

The Regional Trail Corporation Umbrella



* Indicates that this organization has its' own 501(C)(3). The vast majority of organizations run their funding through The Regional Trail Corporation.

SUMMARY:

Completed & Owned Trails = 70 miles; Maintained Trails = 78 miles; Monitored Trails = 81 miles

ARTICLES OF ASSOCIATION OF THE
FIVE STAR TRAIL CHAPTER OF THE
REGIONAL TRAIL CORPORATION

Adopted February 22, 1996

(Revised January 22, 2008)

Article I - NAME

The name of this organization shall be the Five Star Trail Chapter (FSTC) of the Regional Trail Corporation, and it shall be an unincorporated organization of individuals, community groups, businesses, and/or local government agencies interested in the support, preservation, maintenance, and improvement of the Five Star Trail in and about Hempfield Township, City of Greensburg, and Boroughs of Youngwood, South Greensburg Southwest Greensburg and New Stanton. These Articles specify the operation of the Five Star Trail Chapter and define the relationship between the Five Star Trail Chapter (FSTC) and the Regional Trail Corporation (RTC) and their respective roles in relation to the Five Star Trail.

ARTICLE II - PURPOSE

The purpose of the Five Star Trail Chapter shall be the following:

- A. To manage and coordinate the volunteer efforts of its members to support, preserve, maintain, and make improvements to the Five Star Trail from Greensburg to the Hempfield-East Huntington Townships boundary and to other trails as decided by the governing board.
- B. To act as a community advocate for the Trail.
- C. To facilitate communications among the community, the local government, and the Board of Directors on issues that affect trails.
- D. To assist Committees and Trail groups located in other townships and municipalities.

ARTICLE III - MEMBERSHIP

Membership in the Five Star Trail Chapter shall be open to any individual, community group, business, and/or local government agency which:

- A. Agrees to abide by the Articles of Association of the FSTC. Membership shall be established by the submission of a completed membership application to the Chapter; and shall be terminated by failure to Maintain Chapter dues. The Five Star Trail Chapter shall be represented at meetings of the RTC by one designated representative.
- B. The Five Star Trail Chapter shall collect and forward membership dues in the amount of \$3.00 per membership to the Regional Trail Corporation. All members of the Five Star Trail Chapter will also be members of the Regional Trail Corporation and as such be entitled to all the rights and privileges of membership as outlined in the RTC bylaws.

ARTICLE IV - GOVERNING BOARD

The affairs of the Five Star Trail Chapter shall be managed by a Governing Board of sixteen (16) to nineteen (19) members, of whom four shall hold the positions of President, Vice President, Secretary, and Treasurer, respectively. All decisions of the Governing Board shall be by simple majority vote of all Board members.

Nine (9) to twelve (12) members of the governing board will be elected at-large for three year

terms by the Governing Board and any current members present at the election meeting . Terms of the at-large directors shall be staggered so that approximately one-third (1/3) are elected each year. Elections of at-large governing board members shall be held at the annual meeting of the general membership of the Five Star Trail Chapter.

The remaining members of the governing board will be appointees of the six (6) municipalities that are cooperating to build the trail and one from Westmoreland County. Each municipality (Hempfield Township, City of Greensburg, Borough of South Greensburg, Borough of Youngwood, Borough of Southwest Greensburg, and Borough of New Stanton.) shall appoint one member to the governing board. Other municipalities may be added as the FST expands through additional communities. The terms of these members shall be determined by the municipalities. If the municipality do not designate a representative, the Governing board may appoint one for the municipality

ARTICLE V - MEETINGS

The Governing Board shall meet monthly or as needed at a date, time, and place decided by the board. The President or Vice President shall conduct the Governing Board meetings, the Secretary shall record the transactions of each meeting, including any votes taken and the Treasurer shall submit a report of the financial status of the FSTC. The Governing Board may opt to meet jointly with the General Membership at its discretion. Notice of all meetings, whether or not to be held jointly with the General Membership, shall be given by the Secretary or President at least one week in advance of the meeting date. Any board member who knows they cannot attend a given meeting may give their proxy to any member that they know will be attending the meeting. The member that will be absent must notify the president and/or secretary prior to the meeting who will have their proxy.

Each membership holder shall be entitled to one vote at any meeting that is open to the General Membership. Seven (7) members of the Governing Board shall constitute a quorum for the transaction of business at any meeting of the Five Star Trail Chapter.

ARTICLE VI - COMMITTEES

The Governing Board may be assisted by Committees of the General Membership, appointed by the President subject to Governing Board approval. Committee shall be advisory only, with no power to control the business affairs of the Five Star Trail Chapter.

ARTICLE VII - AUTHORITY

Consistent with the responsibilities outlined in Article VIII, the Five Star Trail Chapter may undertake agreements with outside parties. All agreements undertaken by the Chapter shall be made in the name of the Five Star Trail Chapter and shall be made with the approval of at least a majority of the Governing Board and signed by the President.

ARTICLE VIII - RESPONSIBILITIES OF FIVE STAR CHAPTER

Responsibilities of the Five Star Trail Chapter shall include the following:

- A. To actively support, preserve, maintain, and improve segment(s) of the Five Star Trail located within Hempfield Township, the City of Greensburg, and the Boroughs of South Greensburg, Southwest Greensburg and Youngwood.
- B. To ensure that all activities of the Chapter and any unusual occurrences during the preceding month are reported by the designated Chapter Trail Representative at each RTC Board of Directors meeting.
- C. To present annually, at the March meeting of the RTC Board of Directors, a written plan for Trail maintenance, monitoring, improvement, fund raising, and other activities for the coming year. RTC approval shall be required prior to implementation of the planned activities.
- D. To monitor the Trail for possible problems or obstructions a minimum of three times per week from April through October and one time per week from November through March with a written report to be turned in monthly to the RTC Manager.
- E. To inspect trail/highway and trail/railroad crossings and other major structures quarterly and report their condition to the RTC Board of Directors.
- F. To promote good neighbor relations and seek contact with property owners adjacent to the Trail.
- G. To reach out to churches, Scout groups, and other community organizations to enlist their support in cleanups and other functions.
- H. To provide answers to questions and problems that arise in connection with operation of the Five Star Trail or immediately inform the RTC President or manager of matters that may be beyond its resources to resolve.
- I. To raise funds through sponsorship and other involvement in local events. The Chapter sponsorship of special events shall be included in the RTC Board-approved annual plan. Those fund-raising activities that are not included in the plan shall be approved by the RTC Board prior to the event. The Chapter shall be encouraged to generate funds in both of the following categories:
 - 1. Funds to cover approved activities (including trail improvements) and operating expenses of the Chapter. Fund-raising activities in this category will generally be of a local nature and shall be planned to avoid conflicting with trail-wide fund-raising campaigns.
 - 2. Funds for direct contribution to the RTC as in the sale of RTC memberships, Trail

"inches," etc. the proceeds of which shall be forwarded to the RTC Treasurer for general use by the RTC.

J. To handle and account for all funds collected using generally accepted accounting principles and to furnish records of all funds held, received, and disbursed to the RTC annually for auditing purposes. Any two of the four officers will be required to sign each check or transfer of funds for the FSTC.

K. To encourage and promote greenway conservation projects.

ARTICLE IX - RESPONSIBILITIES OF THE RTC

Responsibilities of the RTC shall include the following:

A. To provide an annual audit of Chapter funds by a certified public accountant unless other arrangements are made.

B. To provide liability insurance on all land owned or controlled by the Regional Trail Corporation.

C. To provide Directors and Officers liability insurance that protects the officers and board members in case of litigation to all trail chapters that fall under the 501 ©) (3) umbrella of the Regional Trail Corporation.

D. To provide an injury policy to all volunteer chapter members working on RTC property to supplement their own insurance policies, if needed.

E. To periodically provide training and orientation sessions for the Five Star Trail Chapter members on the history, operation and current status of all RTC trail projects to aid in answering questions posed by the public.

F. To assist the Chapter in developing its annual plans of activities.

G. To aid in the development of fundraising events to be conducted by the Chapter.

H. To implement the Trail regulations specified in the RTC Management Plan.

I. To handle all Trail matters whose resolution may be beyond the responsibilities or resources of the Chapter.

J. To provide maintenance equipment on an as-available basis.

K. To provide liability insurance to cover volunteer chapter members working on RTC property.

ARTICLE X - AMENDMENTS

Amendments to these Articles of Association shall require both of the following:

- A. Two-thirds (2/3) vote of the Governing Board.
- B. Approval of the RTC Board of Directors.

ARTICLE XI - TERM

- A. The Chapter shall continue to exist from year to year until terminated.
- B. Termination of the chapter shall require both of the following:
 - (1) Two-thirds (2/3) vote of the Governing Board.
 - (2) Action of the RTC Board of Directors.
- C. In the event of termination, any remaining funds held by the Chapter shall revert to the RTC.

Revised this 22nd day of January, 2008 by:

Vaughn Neill, President Date
Five Star Trail Chapter

Witness:

Hannah Hardy, President Date
Regional Trail Corporation

Witness:

MUNICIPALITY OF MONROEVILLE
ALLEGHENY COUNTY, PENNSYLVANIA

RESOLUTION NO. 03-50

A RESOLUTION OF THE MUNICIPALITY OF MONROEVILLE, ALLEGHENY COUNTY, PENNSYLVANIA PROVIDING FOR SUPPORT BY THE MUNICIPALITY FOR A JOINT MUNICIPAL PROJECT TO CONSTRUCT A BIKING AND WALKING TRAIL AND LINEAR GREENWAY BEGINNING AT THE ALLEGHENY COUNTY-WESTMORELAND COUNTY LINE AND CONTINUING EAST ACROSS WESTMORELAND COUNTY FROM TRAFFORD BOROUGH TO SALTSBURG BOROUGH, ON THE WESTMORELAND-INDIANA COUNTY LINE, AND THE COMMITMENT OF PERSONNEL AND EQUIPMENT OF THE MUNICIPALITY TO ASSIST IN WORK ON THE TRAIL/GREENWAY.

WHEREAS, the Municipality of Monroeville is interested in participating in a joint municipal project to build a biking and walking trail and a linear greenway beginning at the Allegheny County-Westmoreland County line and continuing across Westmoreland County from Trafford Borough to Saltsburg Borough, located on the Westmoreland-Indiana County line, running along Turtle Creek in the west and following the old Turtle Creek Branch of the Pennsylvania Railroad through Trafford Borough, the Municipality of Monroeville, the Municipality of Murrysville, Penn Township, Export Borough, Delmont Borough, Salem and Loyahanna Townships; and

WHEREAS, representatives of the Boroughs of Trafford, Export and Delmont, Townships of Penn; Salem and Loyahanna, the Municipalities of Murrysville and Monroeville, and the County of Westmoreland have been serving on a task force to evaluate the feasibility of the project and to develop plans to carry out such a project; and

WHEREAS, the municipalities, together with community and conservation organizations and committed volunteers, plan to form a Trail Chapter in association with the Regional Trail Corporation, which will pursue State, Federal, and private grants for trail construction and operations; and

WHEREAS, a federal grant in the amount of \$242,000 has already been awarded to the Regional Trail Corporation to assist with the construction of the trail; and

WHEREAS, in order for the project to proceed from the planning stages to the construction stages, it is necessary for the Trail communities to publicly declare their support for the project, and their willingness to provide personnel and equipment to assist with the construction of the trail

NOW, THEREFORE, be it resolved that the Council of the Municipality of Monroeville hereby declares its support for the Trafford to Saltsburg Trail and Greenway Project, and agrees that the Municipality of Monroeville will provide such personnel and equipment as the Municipality may have reasonably available to assist with the construction, maintenance, and management of the segment of the trail and greenway that is situated within and along its municipal borders.

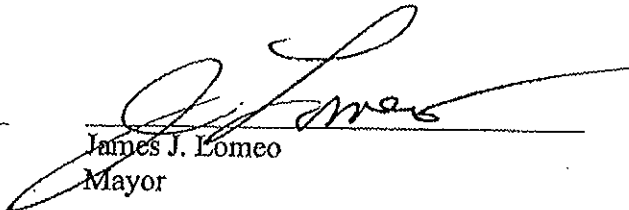
I hereby certify that this Resolution was adopted by the Monroeville Municipal Council on the 13th of May, 2003.

ATTEST:

MUNICIPALITY OF MONROEVILLE



Marshall W. Bond
Municipal Manager



James J. Lomeo
Mayor

ENTERED INTO LEGAL BOOK: May 23, 2003

Trail Participation Form for Municipalities

Municipality _____

Contact Person _____

Phone _____ Fax _____ Email _____

Equipment Available:

_____ Trucks (Number and Size) _____
_____ Backhoe
_____ Grader
_____ Grade All
_____ Front End Loader
_____ Paving Machine
_____ Flail Mower or Brush Hog for Trail Sides
_____ Dozer or Track Vehicle
_____ Other _____

Labor Available: Crew Size and Supervision: _____

Timetable: What open time periods might be available for trail work? _____

Westmoreland Heritage Trail Chapter In Kind Trail Contributions Municipal Work Forces

For the Week of: _____

Number of Hours

<u>Manpower</u>	Mon	Tues	Wed	Thurs	Fri	Totals
Laborers						
Equipment Operators						
Truck Drivers						
Supervisors/Forman						
<u>Equipment</u>						
Pick-Up Truck						
Dump Truck						
Dozer						
Roller						

Crew Leader:

Work Performed:

Area Worked:

Title:

Signature

file: WHTC Mun Work Force.doc

Please email completed form to Marilyn Stoll marehs@adelphia.net

Define clear roles for park and recreation providers as well as create a County-wide network for recreation and open space providers. The concept of integrated parks and open space relies on each provider pulling its own weight. Consequently, each provider should concentrate its resources on meeting its own responsibilities and obligations.

Table 23
Responsibilities Matrix

Park Classification	Municipality	School District	County	State	Federal	Private Sector	Quasi-Public (conservancies, etc.)
Neighborhood Park	●	□	□			□	
Community Park	●	□	□			□	□
Metropolitan Park	□		●				□
Regional Park			●	●			
Preserve			●	●	●		●
Special Activity		●	□	●	●	●	□
Trail	□	□	●	□	□		●
Greenway Corridor	□	□	●	□	□		●

● = Primary Responsibility

□ = Cooperative Responsibility

Creating a New Trail Chapter to Associate with the Regional Trail Corporation

Before petitioning the Regional Trail Corporation for Chapter status a group must have in place the following items:

A. Membership

25 committed individuals, organizations, or businesses that are willing to work together to establish a trail or accept responsibility for a segment of trail. Members must be willing to pledge their time, skills, and dues payment to the chapter.

B. Municipal Partners

Local municipalities, through which the trail passes, should be committed via a simple resolution, passed at a public meeting, that commits their assistance to the extent of their capabilities to trail maintenance and construction. (Sample resolutions are available.)

C. Organization Partners

In organizing a trail chapter the group should seek the support of local agencies and organizations with overlapping missions that would be willing to provide support and assistance. Examples would include: Conservation Agencies, watershed organizations, land trusts, historical societies, business organizations or Chambers of Commerce, Boy Scouts or Girl Scouts, etc. Trails are all about partnerships and are excellent tools for building good community relationships.

D. Trail Segment

A trail chapter must be associated with and accept responsibilities for a designated and defined trail segment or trail.

When a group has developed the items in A through D above they can, by letter to the Regional Trail Corporation, request consideration for Chapter status.

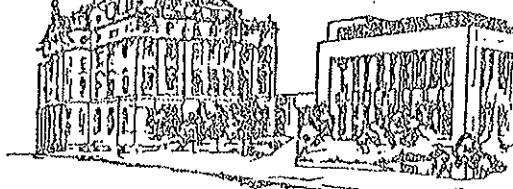
Thomas C. Ceraso
Commissioner

Tom Balya
Chairman

Phil Light
Commissioner

Westmoreland County Pennsylvania

Westmoreland County
Department of Public Works
Claude R. Petroy, Sr., Director
RD #12, Box 203
Donohoe Road
Greensburg, Pennsylvania 15601



Telephone
(724) 830-3950

May 20, 2003

Salem Township Supervisors
Mr. Ron Martz
R.D.#4, Box 200.
Greensburg, PA 15601

Dear Mr. Martz:

Representatives of eight municipalities and the Westmoreland County Bureau of Parks and Recreation have been studying the feasibility of developing a trail for walking, running, bicycling, and horseback riding from Saltsburg across the County to Trafford. The trail would utilize the old Turtle Creek Branch of the Pennsylvania Railroad corridor. While the study was progressing much of the corridor between Delmont and Saltsburg was donated to us to use for that purpose. The section from Delmont to Saltsburg would be the easiest section to build according to the study.

We are now forming a Chapter of the Regional Trail Corporation to work on making this happen. The Chapter would be governed by a Board of Directors composed of a representative of each of the eight municipalities plus one from Westmoreland County and a number that would be elected at large. We are asking the eight municipalities along the route to pass a resolution committing their support to the project and also to appoint a person to serve as their representative to the governing board. So far Loyalhanna Township, Delmont Borough, Penn Township, the Municipalities of Monroeville and Murrysville, and Trafford Borough have passed the resolution. Attached is a copy for your review, which we would like Salem Township to consider.

If you have any questions please do not hesitate to give me a call. I would be glad to meet with your Board of Supervisors to explain things further if you would like. I can be reached at 724-830-3962.

Thank you for your consideration and assistance.

Sincerely,

Malcolm N. Sias,
Program Coordinator

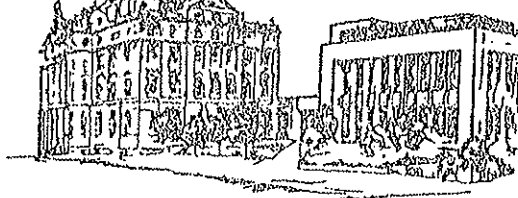
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Telephone
(724) 830-3950

August 13, 2003

Dear Saltsburg to Trafford Trail Participants:

The Saltsburg to Trafford Trail Task Force met on August 7, 2003 and discussed "Where do we go from here"? Much is happening along the trail from property transfers on the western end of the trail to bridge construction on the east.

Resolutions have been adopted by the majority of municipalities and it's now time we moved forward!

It was suggested that the Trail Task Force concentrate on sections of trail that can be built, and in order to do this, we need to form a Saltsburg to Trafford Trail Chapter of the Regional Trail Corporation.

The Saltsburg to Trafford Trail Chapter of the Regional Trail Corporation will consist of municipal appointees from municipalities, which have adopted resolutions in support of the trail, as well as other organizations supporting the trail such as the Conemaugh Valley Conservancy and the Turtle Creek Watershed. Other Board members will be elected at-large from the membership. Attached is a copy of the Articles of Association for the trail chapter, which details the governing Board and its relationship to the Regional Trail Corporation.

We need every municipality that wants to participate to appoint a representative and send that individual to the Chapter organization meeting scheduled for Thursday, September 4 at 7:00 pm at the Westmoreland County Public Works Building on Donohoe Road, Greensburg.

Action at the September 4, 2003 meeting will include the formation of a Board of Directors, including the election of the at-large Board members, and adoption of the Articles of Association with the Regional Trail Corporation to create an official Trail Chapter. Please pass this letter to your municipal representative.

If you are not an appointed municipal representative and would like to be considered for nomination as an at-large board member please contact us to let us know your interest in serving.

Very truly yours,

Jack Paulik and Malcolm Sias
Westmoreland County Parks

**Saltsburg to Trafford Trail Council
Organizational Meeting-September 4, 2003 @ 7:00 p.m.
Westmoreland County Public Works Building**

Attendance: Noel Grimm, John Salvatore, Dorothea Motto, Marilyn & Phil Stoll, Bruce Robinson, Jack Maher, Ron Markos, Ruth Roberts, Frank Pavlovich, Robert McKinley, John Motto, Tom Dittman, Reynold Peduzzi, Paul Heyworth, Jack Paulik, and Malcolm Sias.

- I. Welcome: Jack Paulik, on behalf of Westmoreland County Bureau of Parks and Recreation and the Regional Trail Corporation, welcomed everyone to the meeting and provided a brief summary of the events that led to tonight's meeting. Jack also reviewed the agenda for the meeting to be sure everyone understood what we intended to accomplish. He then introduced Malcolm Sias and asked him to review the Articles of Association with the group.
- II. Articles of Association: Malcolm led the group in a review of the Articles of Association for the trail chapter, explaining the make up of the governing board, the responsibilities of the Trail Chapter and the responsibilities of the RTC. He then reviewed in detail the appointees to the governing board from the various municipalities.
- III. The following is a list of the nine municipalities and two organizations that were invited to appoint representatives to the board and their appointees:

1. Loyahanna Township	Mary Louise Trunzo
2. Salem Township	Frank Pavlovich
3. Delmont Borough	open
4. Export Borough	open
5. Penn Township	open
6. Municipality of Murrysville	Tom Dittman
7. Borough of Trafford	Bruce Robinson
8. Municipality of Monroeville	Noel Grimm
9. Westmoreland County	Jack Paulik
10. Turtle Creek Watershed Association	Chris Droste
11. Conemaugh Valley Conservancy	Jack Maher

The floor was then declared open for nominations to the at-large positions and the following individuals were nominated:

Michelle Clarke	Chris Zundel
John Motto	Reynold Peduzzi
John Salvatore	Duane Wolley
Marilyn Stoll	

**Five Star Trail
Spring Trail Evaluation
March 10, 2005**

Projects/Repairs that are needed by section:

Hempfield Township Section

1. Extend swale/ditch on upper side of trail at Powerex (where trail meets the road at WCCC) back to curve of trail.
2. Line drainage ditch behind Plumbers and Pipefitters with large rock to slow down water.
3. Pave with asphalt the entire trail from the front of Powerex through to back driveway of Powerex.
4. Before paving trail above consider enlarging the drainpipe behind Powerex to 18"-24".
5. Dig small swale/ditch along the trail at WCCC ball field to keep water from washing the trail.
6. Replace three poles that have been knocked over at the entrance to the parking lot at Trolley Line Ave.
7. Repair trail wash out between Trolley Line Ave and Willow Crossing along the fenced section. Apparently the stream flooded above the trail and washed out about 50-100' of trail.
8. Consider installing a dyke of mounded dirt along streamside where the above washout occurred.
9. Replace lock at Willow Crossing Gate with a standard trail lock.
10. Open swale/ditch along trail behind Midway Fire Hall. It has washed shut with dirt coming down the hill.
11. A sign is down along Depot Street on the WCCC side of the trail crossing. Laying along the side of the road. Reinstall the sign.
12. Reinstall the stop sign at Trolley Line Ave. The Stop Sign is removed from the ground and is currently fastened to the post barrier. Reinstall the signpost into the ground.

South Greensburg Section:

1. Install the cable barrier at the turn in the road at the Tire Company. Old oil company building. Cable is laying there and lock is there. Need to install new eyebolts in the posts and hang the cable.
2. Install drain pipe and catch basin at the PPG Building where water from the parking lot is washing across the trail.
3. Open the swale behind ABF Trucking, which has washed shut with dirt, so that water drains down the side of the trail.

Entire Trail: Chapter Volunteers

1. Install hasps and locks on bulletin boards with doors.
2. Install lexan doors on bulletin boards where they are missing.
3. Install new bench in memory of Ray Butterworth.
4. Install new bench plates on all benches for memorials. They are currently ordered from Kaylor Displays.
5. Install signs at all trail access areas to identify the area. Grant to support signs filed with West. Tourism Grant Program. May 18 announcement date.
6. Continue work on maintenance/ visitor center building to be located at Trolley Line Ave. Access.

Greensburg Section:

1. Repair trail wash outs with bucket of front-end loader. Various areas. Up and down trail from the Wood Street entrance and across from the Sunset Restaurant. This may be enough to make the trail ride able.
2. Install retaining wall of some sort along stream entrance just north of Route 30 bridge. The stream is cutting away the bank along side the trail and is creating a dangerous situation. Either concrete blocks, like at Pittsburgh Street, or gabion baskets need to be placed to keep the stream from washing further into the trail. Discuss this with West. Conservation District for solution and any needed permits (Jim Pillsbury).

Westmoreland Heritage Trail Chapter Trail Work Party Volunteer Sign in Sheet

Date:

	Name	Time In	Time Out	Number Hours worked
1.				
2.				
3.				
4.				
5.				
6.				
7.				
8.				
9.				
10.				
11.				
12.				

Crew Leader:

Total Volunteer Hours _____

Work Performed:

Equipment Used:

Area Worked:

Title:

Signature

file: WHTC Vol Work Party.doc

Please email completed form to Marilyn Stoll marehs@adelphia.net

Coal and Coke Trail – Professional In-Kind Hours

Hours Performed by: _____

						(name and title)	
No.	Date	Time in	Time out	Hours Worked	Location	Equipment	Worked performed
1							
2							
3							
4							
5							
6							
7							
8							
9							
10							
11							
12							
				<u>Total Hours</u>		Signature: _____	